

SENDER (FROM): Wilbur William Matthee <info@ethichawks.co.za>
RECIPIENT (TO): Farzaana Ismail <FIsmail@judiciary.org.za>
CARBON COPY (CC): Tsakani Soundy <TSoundy@judiciary.org.za>
TIMESTAMP (DATE): Thu, 12 Mar 2026 14:01:04 +0200
SUBJECT LINE: Re: URGENT APPLICATION - MATTHEE v AFROCENTRIC HEALTH & OTHERS
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Dear Ms Ismail,

Thank you for your follow-up. I write to clarify one point directly.

This application is brought under section 77A read with section 77(3) of the BCEA for enforcement of section 34(2) "recovery of an unlawful salary deduction. A section 77A BCEA claim has no CCMA pre-referral requirement. The Labour Court has original jurisdiction. This is distinct from LRA unfair labour practice disputes, which do require CCMA certification.

The two Certificates of Non-Resolution already submitted (WECT23564-25 and WECT24486-25) evidence the history of the dispute. They are not submitted as a jurisdictional gateway "because none exists for this claim.

I am currently facing imminent eviction, water disconnection, and loan shark debt "all direct consequences of the unlawful deduction that is the subject of this application. The interim relief of R14,811.77 is urgent precisely to prevent irreversible harm.

I respectfully request that a case number be issued without further delay and the matter placed before a judge for the urgent interim relief application.

PLEASE TAKE FORMAL NOTICE that the continued failure to issue a case number in circumstances where the jurisdictional basis is clear, the urgency is documented, and the Applicant faces imminent homelessness, constitutes an obstruction of access to justice. This correspondence and all delays to date will be placed before the presiding judge and recorded as relevant circumstances in these proceedings. If a case number is not issued by close of business today, I will escalate this matter directly to the Office of the Judge President.

Sincerely,

Wilbur William Matthee

On Wed, 11 Mar 2026, 17:06 Wilbur William Matthee, <info@ethichawks.co.za> wrote:

> Dear Ms. Ismail,

>

> I confirm that I have attended the CCMA/Bargaining Council, and I have two
> certificates of non-resolution regarding this matter. Please find both
> certificates attached for your review.

>

> Kind regards,

>

> Wilbur William Matthee

>

>

> On Wed, 11 Mar 2026, 15:45 Farzaana Ismail, <FIsmail@judiciary.org.za>

> wrote:

>

>> Dear Sir

>>

>>

>>
>> I have had a look at your papers, I wanted to enquire , have you been to
>> the CCMA or Bargaining council ? do you have an outcome ?
>>
>>
>>
>> Regards
>>
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>>
>> *From:* Wilbur William Matthee <info@ethichawks.co.za>
>> *Sent:* Monday, 09 March 2026 15:22
>> *To:* Farzaana Ismail <FIsmail@judiciary.org.za>
>> *Cc:* Tsakani Soundy <TSoundy@judiciary.org.za>
>> *Subject:* Re: URGENT APPLICATION - MATTHEE v AFROCENTRIC HEALTH & OTHERS
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>> Dear Ms Ismail,
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>> Thank you for your response. I confirm receipt and look forward to your
>> follow-up communication.
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>> Should you require any additional documents or information to process my
>> application, please do not hesitate to contact me at this email address or
>> on 069 635 1435.
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>> Kind regards,
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>> On Mon, 09 Mar 2026, 08:28 Farzaana Ismail, <FIsmail@judiciary.org.za>
>> wrote:
>>
>> Dear Sir
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>> I will follow up and let you kno.
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>> Regards
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>> *From:* Wilbur William Matthee <info@ethichawks.co.za>

>> *Sent:* Friday, 06 March 2026 15:02
>> *To:* Farzaana Ismail <FIsmail@judiciary.org.za>
>> *Subject:* RE: URGENT APPLICATION - MATTHEE v AFROCENTRIC HEALTH & OTHERS
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>> Dear Ms. Ismail,
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>> I am writing to follow up on my urgent filing submitted, 5 March 2026,
>> for manual loading via the Labour Court online portal.
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>> Portal credentials provided:
>>
>> Email: info@ethichawks.co.za
>>
>> Password: Goth-boy89
>>
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>> Brief matter description:
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>> BCEA s77A application - unlawful salary deduction (40.47%) - urgent
>> interim relief sought due to current destitution (no running water, facing
>> eviction end of March 2026).
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>> I would be most grateful if you could confirm:
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>> Receipt of the Notice of Motion and supporting documents;
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>> Whether any additional information or documentation is required from my
>> side.
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>> The urgency of this matter arises from the fact that I am currently
>> living without running water and facing imminent eviction. The Notice of
>> Motion requests interim relief (payment within 72 hours of service to
>> prevent homelessness) which I can only activate once I have the case number
>> to serve on the Respondents.
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>> I apologize for the follow-up and understand that the Registrar's office
>> is managing many matters. Any guidance you can provide on timing would be
>> greatly appreciated so I can prepare for immediate service upon receipt of
>> the case number.
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>> Thank you for your patience and assistance.
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>> Yours faithfully,
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>> Wilbur William Matthee
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>> Applicant in Person
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>> *Disclaimer:*
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